

Nepal Academy of Music and Drama Act, 2007

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 9

Nepal Music and Drama Academy Act, 2064

Certification and Publication Date

2064.5.31

Amending Acts

1. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 22 of the year 2064 made by the Legislature-Parliament

An Act made to provide for matters relating to the Nepal Music and Drama Academy

Preamble: Whereas, it is desirable to make legal provisions for the establishment and operation of the Nepal Music and Drama Academy to protect, conserve, promote and comprehensively develop the music and drama genres of Nepal, a multi-ethnic, multilingual and multicultural country, to conduct and cause to conduct study and research in the music and drama genres, and to honor and respect scholars and talents in this field,

The Legislature-Parliament has enacted this Act. Chapter-1

Preliminary

1. Short title and commencement: (1) This Act may be called the "Nepal Music and Drama Academy Act, 2064".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Music" shall be understood to include singing, musical composition, instrumental playing, and dance.

(b) "Drama" shall be understood to include drama, acting, and theatre.

(c) "Academy" shall be understood to mean the Nepal Music and Drama Academy established pursuant to Section 3.

(d) "Assembly" shall be understood to mean the Academic Assembly pursuant to Section 7.

(e) "Council" shall be understood to mean the Academic Council pursuant to Section 11.

(f) "Chancellor" shall be understood to mean the Chancellor of the Academy.

(g) "Vice-Chancellor" shall be understood to mean the Vice-Chancellor of the Academy.

(h) "Secretary" shall be understood to mean the Secretary of the Academy.

(i) "Office-bearer" shall be understood to mean the Chancellor, Vice-Chancellor, Secretary, and nominated members of the Council.

(j) "Prescribed" or "as prescribed" shall be understood to mean prescribed or as prescribed in the rules made under this Act. Chapter-2

Establishment, Functions, Duties and Powers of the Academy

3. Establishment of the Academy: (1) An academy named the Nepal Music and Drama Academy is established for, among others, the work of protecting, conserving, promoting and comprehensively developing the music and drama genres.

(2) The central office of the Academy shall be located in the Kathmandu Valley, and the Academy may open branches in various places of Nepal as required. 4.

Academy to be an autonomous body: (1) The Academy shall be an autonomous body with perpetual succession. (2) The Academy shall have a separate seal for all its acts and proceedings. (3) The Academy may, like an individual, acquire, use, sell or otherwise manage movable and immovable property. (4) The Academy may, like an individual, sue and be sued in its own name. (5) The Academy may, like an individual, enter into contracts and exercise the rights and discharge the liabilities arising from such contracts. 5. Functions, duties and powers of the Academy: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Academy shall be as follows:- (a) To formulate policies and programs of the Academy, (b) To collect, protect, conserve and conduct study and research on music and dramatic arts, (c) To create research-based and original works related to music and drama genres and to publish such works, (d) To make provisions for recognition, respect and awards for national and foreign individuals who make significant contributions to the music and drama genres, (e) To establish libraries, museums, theatres, drama halls, etc. related to music and drama, (f) To preserve musical instruments, instrumental materials and means of musical composition of various ethnic groups and communities of Nepal, (g) To study, research, promote and preserve the original folk tunes, folk dances and folk music of various ethnic groups and communities of Nepal, (h) To introduce Nepali music and drama genres to the world, (i) To make provisions for scholarships for study and research in music and drama genres, (j) To conduct training programs related to music and drama genres, (k) To encourage associations, organizations and individuals involved in the development and expansion of music and drama genres, (l) To organize or cause to organize seminars, workshops, conferences, festivals and competitions at national and international levels in music and drama genres, (m) To establish and expand relations with associations and organizations related to music and drama genres and to exchange mutual assistance with such associations and organizations, (n) To uplift and develop folk-based music and dramatic arts, (o) To perform or cause to perform other necessary work to fulfill the objectives of this Act. Chapter-3 Organization of the Academy 6. Organization of the Academy: The organization of the Academy shall be as follows, and their collective form shall constitute the structure of the Academy:- (a) Assembly, (b) Council, and (c) Service Commission. 7.

Assembly: (1) There shall be an Academic Assembly as the supreme body of the Academy. (2) The formation of the Assembly shall be as follows:- (a) Chancellor ? Chairperson (b) Vice-Chancellor ? Vice-Chairperson (c) Secretary, Ministry of Culture, Tourism and Civil Aviation ? Member (d) Twenty-four persons nominated by the Prime Minister from amongst distinguished persons related to the music and drama fields, ensuring appropriate representation of women as well, taking into account inclusiveness ? Members (e) Secretary ? Member-Secretary (3) The term of office of the nominated members pursuant to sub-section (2) shall be four years. (4) If the post of a nominated member of the Assembly becomes vacant for any reason, another person shall be nominated from the same genre or field from which such member was nominated, for the remaining term. (5) The facilities of the members of the Assembly shall be as

prescribed. 8. Recommendation Committee: (1) There shall be a Recommendation Committee as follows to recommend names to the Prime Minister for the appointment or nomination of office-bearers and members to be nominated to the Assembly:- (a) Minister for Culture, Tourism and Civil Aviation ? Chairperson (b) Two persons from amongst reputed persons in the music and drama fields, designated by the Prime Minister ? Members (2) While recommending names for nomination as members of the Assembly, the committee pursuant to sub-section (1) shall recommend names from amongst persons who have studied or researched in the music and drama fields or are reputed in those genres, ensuring as far as possible representation from various genres and fields of music and drama, and covering all castes, genders, and linguistic groups. (3) While recommending names for the appointment of office-bearers, the committee pursuant to sub-section (1) shall recommend from amongst the nominated members of the Assembly. (4) The procedure to be adopted by the committee pursuant to sub-section (1) regarding recommendations shall be as determined by the committee itself. 9.

Functions, duties and powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:- (a) To determine the policy of the Academy, (b) To approve the annual plan and program of the Academy, (c) To pass the annual budget of the Academy, (d) To approve scholarships, honors and awards, (e) To give necessary instructions and guidance to the Council, (f) To monitor and evaluate the work of the Council, (g) To approve the rules of the Academy, (h) To perform other functions as prescribed. 10. Meeting of the Assembly: (1) A meeting of the Assembly shall be held at least twice a year. (2) A meeting of the Assembly shall be held at the date, time and place specified by the Chairperson of the Assembly. (3) The Member-Secretary of the Assembly shall give notice to all members, including the agenda for discussion in the meeting, at least fifteen days prior to the meeting of the Assembly. (4) If more than fifty percent of the members currently holding office are present in the Assembly, it shall be deemed to have constituted a quorum for the meeting of the Assembly. (5) The meeting of the Assembly shall be presided over by the Chairperson of the Assembly, and in their absence, by the Vice-Chairperson. (6) The opinion of the majority shall prevail in the meeting of the Assembly, and in case of a tie, the person presiding over the meeting shall cast the decisive vote. (7) The decision of the meeting of the Assembly shall be certified and kept by the Member-Secretary of the Assembly. (8) The Assembly may invite honorary academicians and life members of the Academy to participate as observers in the meeting of the Assembly. (9) Other procedures relating to the meeting of the Assembly shall be as determined by the Assembly itself. 11. Formation of the Council: (1) There shall be an Academic Council to function as the executive body of the Academy. (2) The formation of the Council shall be as follows:- (a) Chancellor ? Chairperson (b) Vice-Chancellor ? Vice-Chairperson (c) Six members nominated by the Prime Minister from amongst the nominated members of the Assembly, including at least two women, ensuring as far as possible representation of various castes, ethnic groups, and linguistic groups ? Members (d) Secretary ? Member-Secretary (3) If the post of a member pursuant to clause (c) of sub-section (2) becomes vacant for any reason, another person shall be nominated from the same genre or field from which such member was nominated, for the remaining term. 12.

Functions, duties and powers of the Council: The functions, duties and powers of the Council shall be as follows:- (a) To implement the decisions made by the Assembly, (b) To follow the instructions given by the Assembly, (c) To submit the audit report to the Assembly, (d) To discuss the annual program, budget, progress report and other reports submitted by the Secretary and, if necessary, amend them and submit them to the Assembly for approval, (e) To manage, operate, protect and supervise the movable and immovable property of the Academy, (f) To manage and operate the fund of the Academy, (g) To accept financial and other assistance received for the Academy, (h) To submit scholarships, honors, recognition and awards to the Assembly for approval, (i) To form committees, sub-committees or task forces as necessary

regarding the work and proceedings of the Council and to specify the functions, duties and powers of such committees, sub-committees or task forces, (j) To perform other functions as prescribed. 13. Meeting of the Council: (1) A meeting of the Council shall be held at least once in two months. (2) A meeting of the Council shall be held at the date, time and place specified by the Chairperson of the Council. (3) The Member-Secretary of the Council shall give notice to all members, including the agenda for discussion in the meeting, at least twenty-four hours prior to the meeting of the Council. (4) If more than fifty percent of the members currently holding office are present in the Council, it shall be deemed to have constituted a quorum for the meeting of the Council. (5) The meeting of the Council shall be presided over by the Chairperson of the Council, and in their absence, by the Vice-Chairperson. (6) The opinion of the majority shall prevail in the meeting of the Council, and in case of a tie, the person presiding over the meeting shall cast the decisive vote. (7) The decision of the meeting of the Council shall be certified and kept by the Member-Secretary of the Council. (8) Other procedures relating to the meeting of the Council shall be as determined by the Council itself. Chapter-4 Chief Patron, Patron and Office-bearers and Employees of the Academy 14. Chief Patron: The Prime Minister shall be the Chief Patron of the Academy. 15. Patron: The Minister for Culture, Tourism and Civil Aviation shall be the Patron of the Academy. 16. Chancellor: (1) There shall be one Chancellor in the Academy. (2) The Chancellor shall be the chief office-bearer of the Academy. 17.

Functions, duties and powers of the Chancellor: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Chancellor shall be as follows:- (a) To implement or cause to implement the directives given by the Assembly and the decisions made by the Council, (b) To cause to prepare the annual program, budget, report and other reports of the Academy, (c) To exercise general control over the work, proceedings and personnel administration of the Academy, (d) To enter into contracts on behalf of the Academy with the approval of the Council, (e) To make necessary contacts with domestic and foreign associations and organizations regarding matters related to the work of the Academy, (f) To perform other functions as prescribed. 18. Vice-Chancellor: There shall be one Vice-Chancellor in the Academy. 19. Functions, duties and powers of the Vice-Chancellor: The functions, duties and powers of the Vice-Chancellor shall be as follows:- (a) To assist the Chancellor in implementing the directives given by the Assembly and the decisions made by the Council, (b) To perform all functions of the Chancellor in the absence of the Chancellor, (c) To perform other functions under the direction of the Chancellor. 20. Secretary: (1) There shall be one Secretary in the Academy. (2) The functions, duties and powers of the Secretary shall be as prescribed. 21. Provisions relating to office-bearers: (1) The Prime Minister shall, subject to this Act, appoint the office-bearers. (2) The term of office of an office-bearer shall be four years. (3) An office-bearer shall work full-time for the Academy. (4) The remuneration, terms of service and facilities of an office-bearer shall be as prescribed. 22. Circumstances of vacancy: The post of an office-bearer or a member of the Assembly shall be deemed to be vacant in the following circumstances:- (a) If their term of office expires, (b) If they resign, (c) If their mental balance is impaired, (d) If they are convicted by a court for a criminal offense involving moral turpitude, (e) If they are removed from office pursuant to Section 23, or (f) If they die. 23.

Power to remove from office: (1) If at least one-fourth of the members currently holding office in the Assembly submit a written complaint to the Prime Minister stating that an office-bearer or a member of the Assembly has not worked in accordance with the objectives of this Act, or has not behaved in accordance with their position, or has not acted honestly, or lacks efficiency, an investigation committee shall be formed by the Prime Minister from amongst the members of the Assembly. (2) The investigation committee pursuant to sub-section (1) shall investigate the matter and submit its report to the Prime Minister, and the Prime Minister shall arrange to place such report before the Assembly for discussion. (3) If, during discussion in the

Assembly on the report submitted pursuant to sub-section (2), a majority of the members of the Assembly decide that the office-bearer or member of the Assembly has not worked in accordance with the objectives of this Act, or has not behaved in accordance with their position, or has not acted honestly, or lacks efficiency, the Prime Minister shall remove such office-bearer or member of the Assembly from their office. (4) An opportunity of defense shall be given to the office-bearer or member of the Assembly before removing them from office pursuant to sub-section (3). 24. Employees: (1) There shall be such number of employees in the Academy as necessary. (2) The appointment, remuneration, facilities and terms of service of the employees pursuant to sub-section (1) shall be as prescribed. 25. Service Commission: (1) There shall be a Nepal Music and Drama Academy Service Commission as follows to recommend for the permanent appointment and promotion of employees of the Academy:- (a) A member of the Public Service Commission designated by that Commission ? Chairperson (b) A member of the Assembly designated by the Assembly ? Member (c) Secretary ? Member-Secretary (2) Other functions, duties and powers of the Service Commission shall be as prescribed. (3) The procedure relating to the meeting of the Service Commission shall be as determined by the Commission itself. (4) The Chairperson and member of the Service Commission shall receive meeting allowance as prescribed for participating in the meeting. Chapter-5 Fund and Audit 26.

Fund of the Academy: (1) There shall be a separate fund of the Academy. (2) The fund pursuant to sub-section (1) shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received from foreign governments, associations, organizations or individuals, (c) Amount received from domestic associations, organizations or individuals, (d) Amount received by the Academy for providing any service, and (e) Amount received from any other source. (3) Before receiving the amount pursuant to clause (b) of sub-section (2), the Academy shall obtain the approval of the Government of Nepal. (4) The amount of the fund shall be deposited by opening an account in a bank designated by the Academy. (5) The operation of the fund and account of the Academy shall be as prescribed. (6) All expenses of the Academy shall be borne from the fund pursuant to sub-section (1). 27. Accounts and audit: (1) The accounts of income and expenditure of the Academy shall be maintained in the manner adopted by the Government of Nepal. (2) The audit of the accounts of the Academy shall be conducted by the Auditor General. Chapter-6 Miscellaneous 28. Honorary Academician and Life Membership: (1) The Assembly may, on the recommendation of the Council, confer the honorary academician membership of the Academy on a domestic or foreign individual who has made a distinguished contribution to the development of the music and drama genres and has enhanced the prestige of Nepal at national and international levels. (2) The Assembly may confer life membership of the Academy on a Nepali citizen who has made a distinguished contribution to the field of music and drama genres. (3) The basis for conferring honorary academician membership and life membership pursuant to sub-sections (1) and (2) shall be as prescribed. (4) The Academy may provide such facilities to a life member as prescribed. Provided that a life member who is receiving any remuneration or facility from the Government of Nepal shall not receive such facility. (5) The Assembly may remove an honorary academician member and a life member from membership on the prescribed grounds. 29. Power to confer recognition, honor and award: The Assembly may confer recognition, honor and award on a person who has made a significant contribution to the music and drama genres. 30. Report to be submitted: The Academy shall submit an annual report of its work and proceedings to the Government of Nepal every year. 31. Oath: Before assuming their office, the Chancellor shall take an oath before the Prime Minister, and the Vice-Chancellor, Secretary and members shall take an oath before the Chancellor in the format as per the Schedule. 32.

Delegation of powers: (1) The Assembly may, as necessary, delegate some of the powers conferred on it by this Act or the rules made under this Act to the Council. (2) The Council may, as necessary, delegate some of

the powers conferred on it by this Act or the rules made under this Act to the Chancellor, Vice-Chancellor or Secretary. (3) The Chancellor may, as necessary, delegate some of the powers conferred on it by this Act or the rules made under this Act to the Vice-Chancellor or Secretary. (4) The Vice-Chancellor may, as necessary, delegate some of the powers conferred on it by this Act or the rules made under this Act to the Secretary. 33. Emblem: The emblem of the Academy shall be as prescribed. 34. Liaising Ministry: The Academy shall, when liaising with the Government of Nepal, do so through the Ministry of Culture, Tourism and Civil Aviation. 35. Power to make rules: The Academy may make necessary rules to implement the objectives of this Act. Provided that while making rules on matters that impose a financial burden on the Government of Nepal, prior approval of the Government of Nepal shall be obtained. Schedule (Relating to Section 31) Oath I, do solemnly affirm/swear in the name of God/country and people Amended by the Some Nepal Laws Amendment and Repeal Act, 2072. that, being fully loyal to the truth and the people, and being fully loyal to the Constitution of Nepal, under which the state authority and sovereignty of Nepal are vested solely in the Nepali people, I shall honestly, without fear, favor, prejudice or ill will, discharge the duties of the office of under the prevailing laws, and I shall not, whether I remain in office or not, in any manner disclose or divulge any matter that comes to my knowledge in the course of performing my duties, except as required by the prevailing laws. Date:- Name:- Signature:-